

SOLICITATION, OFFER AND AWARD		1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.		RATING		PAGE OF PAGES 1 49	
2. CONTRACT NUMBER		3. SOLICITATION NUMBER HM047625R0016		4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL		5. DATE ISSUED	
7. ISSUED BY Nat'l Geospatial-Intelligence Agen ATTN: OCSA/MS: S84-OCSA 7500 GEOINT DRIVE SPRINGFIELD VA 22150		CODE OCSA		8. ADDRESS OFFER TO (If other than Item 7)		6. REQUISITION/PURCHASE NUMBER	

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION

9. Sealed offers in original and _____ copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if hand carried, in the depository located in _____ until 1700 ES local time _____ (Date)

CAUTION: LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME Hannah Pulcher	B. TELEPHONE (NO COLLECT CALLS)			C. E-MAIL ADDRESS hannah.m.pulcher@coe.ic.gov
	AREA CODE	NUMBER	EXT.		

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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within 0 calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause No. 52.232.8)	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
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14. ACKNOWLEDGEMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NO.		DATE	AMENDMENT NO.	DATE

15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)
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15B. TELEPHONE NUMBER	15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.	17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION	

AWARD (To be completed by government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION	
22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204 (a) () ☐ 41 U.S.C. 3304 (a) ()		23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM
24. ADMINISTERED BY (If other than Item 7)		25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print) Daniel Fadely		27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	
		28. AWARD DATE	

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.
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SECTION B - Supplies or Services/Prices

B.1 Supplies or Services/Prices

Item Number	Description	Quantity	Unit	Unit Price	Amount
0001	Software Development (RDT&E) (CPFF)				
	Award Type: Indefinite-quantity				
	Product/Service Code: DF01				
	Product/Service Description: IT AND TELECOM -				
	IT MANAGEMENT SUPPORT SERVICES				
	(LABOR)				
0002	Integration (O&M) (CPFF)				
	Award Type: Indefinite-quantity				
	Product/Service Code: DF01				
	Product/Service Description: IT AND TELECOM -				
	IT MANAGEMENT SUPPORT SERVICES				
	(LABOR)				
0003	Integration (RDT&E) (CPFF)				
	Award Type: Indefinite-quantity				
	Product/Service Code: DF01				
	Product/Service Description: IT AND TELECOM -				
	IT MANAGEMENT SUPPORT SERVICES				
	(LABOR)				
0004	Integration (RDT&E) (T&M)				
	Award Type: Indefinite-quantity				
	Product/Service Code: DF01				
	Product/Service Description: IT AND TELECOM -				
	IT MANAGEMENT SUPPORT SERVICES				
	(LABOR)				
0005	Software Maintenance (O&M) (CPFF)				
	Award Type: Indefinite-quantity				
	Product/Service Code: DF01				
	Product/Service Description: IT AND TELECOM -				
	IT MANAGEMENT SUPPORT SERVICES				
	(LABOR)				
0006	Operations & Sustainment (O&M) (CPFF)				
	Award Type: Indefinite-quantity				
	Product/Service Code: DF01				
	Product/Service Description: IT AND TELECOM -				

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Item Number	Description	Quantity	Unit	Unit Price	Amount
0007	IT MANAGEMENT SUPPORT SERVICES (LABOR) Operations & Sustainment (O&M) (FFP)				
0008	Award Type: Indefinite-quantity Product/Service Code: DF01 Product/Service Description: IT AND TELECOM - IT MANAGEMENT SUPPORT SERVICES (LABOR) FG IT Procurement (O&M) (CPFF)				
0009	Award Type: Indefinite-quantity Product/Service Code: DF01 Product/Service Description: IT AND TELECOM - IT MANAGEMENT SUPPORT SERVICES (LABOR) FG IT Procurement (PDW) (CPFF)				
0010	Award Type: Indefinite-quantity Product/Service Code: DF01 Product/Service Description: IT AND TELECOM - IT MANAGEMENT SUPPORT SERVICES (LABOR) FG COTS & Common Services Procurement (O&M) (CPFF)				
0011	Award Type: Indefinite-quantity Product/Service Code: DF01 Product/Service Description: IT AND TELECOM - IT MANAGEMENT SUPPORT SERVICES (LABOR) FG COTS & Common Services Procurement (RDT&E) (CPFF)				

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Item Number	Description	Quantity	Unit	Unit Price	Amount
0012	Award Type: Indefinite-quantity Product/Service Code: DF01 Product/Service Description: IT AND TELECOM - IT MANAGEMENT SUPPORT SERVICES (LABOR)		EA		
	Other Direct Costs (ODC) (O&M) (CR) Award Type: Indefinite-quantity (Not Separately Priced) Product/Service Code: DF01 Product/Service Description: IT AND TELECOM - IT MANAGEMENT SUPPORT SERVICES (LABOR)				
0012AA	ODC-Travel (O&M)				
0012AB	Award Type: Indefinite-quantity Product/Service Code: DF01 Product/Service Description: IT AND TELECOM - IT MANAGEMENT SUPPORT SERVICES (LABOR)				
	ODC-Material (O&M)				
0013	Award Type: Indefinite-quantity Product/Service Code: DF01 Product/Service Description: IT AND TELECOM - IT MANAGEMENT SUPPORT SERVICES (LABOR)		EA		
	Other Direct Costs (ODC) (RDT&E) (CR) Award Type: Indefinite-quantity (Not Separately Priced) Product/Service Code: DF01				

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Item Number	Description	Quantity	Unit	Unit Price	Amount
0013AA	Product/Service Description: IT AND TELECOM - IT MANAGEMENT SUPPORT SERVICES (LABOR) ODC-Travel (RDT&E)				
0013AB	Award Type: Indefinite-quantity Product/Service Code: DF01 Product/Service Description: IT AND TELECOM - IT MANAGEMENT SUPPORT SERVICES (LABOR) ODC-Material (RDT&E)				
	Award Type: Indefinite-quantity Product/Service Code: DF01 Product/Service Description: IT AND TELECOM - IT MANAGEMENT SUPPORT SERVICES (LABOR)				

B.2 ORDERING PERIOD

The ordering period for this single award Indefinite Delivery Indefinite Quantity (IDIQ) contract is seven (7) years. The performance period for task orders issued under the IDIQ contract may continue up to but no more than 364 days beyond the last day of the ordering period.

B.3 MINIMUM GUARANTEED UNCLASSIFIED UNCLASSIFIED

The IDIQ contract guaranteed minimum amount is \$10,000.00. The minimum guaranteed amount will be applied to Task Order 0001. The minimum guaranteed amount is satisfied through the issuance of a single order or a series of orders having a cumulative value equal to or greater than the minimum guarantee.

B.4 CONTRACT MAXIMUM

The contract ceiling of the IDIQ contract for the duration of the ordering period is \$721,000,000.00

B.5 CONTRACT TYPE

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The IDIQ consists of a hybrid Cost Reimbursable Fixed Fee, Firm Fixed Price, Time and Material, and Cost Reimbursable (CR) (no fee) contract type.

SECTION C - Description/Specifications

C.1 Description/Specifications

Please refer to the Statement of Work in Section J

SECTION D - Packaging and Marking

D.1 Packaging and Marking

This section is intentionally left blank.

SECTION E - Inspection and Acceptance

E.1 Inspection and Acceptance

E.2 52.246-5 INSPECTION OF SERVICES - COST-REIMBURSEMENT. (APR 1984)

SECTION F - Deliveries or Performance

F.1 Deliveries or Performance

Item/Sub Number	Item Description	Quantity	Unit Of Issue	Delivery Address	Delivery Timeframe

SECTION G - Contract Administration Data

G.1 Contract Administration Data

G.2 CONTRACTING OFFICER'S REPRESENTATIVE (COR) (JAN 2004)

The following contracting officer's representative(s) (COR) are appointed to this contract: (use for Awards)

PRIMARY:

TBD

[]

ALTERNATE:

TBD

TBD

For ordering contracts, the COR(s) will be identified on each delivery/task order.

The COR(s) has a written designation memorandum on file with the procurement office. This memorandum, as directed by DFARs 252.201-7000(b), specifies the extent of the COR's authority to act on behalf of the contracting officer. This authority cannot be re-delegated to any other person. The alternate COR acts in behalf of the primary COR in absence of the primary COR and is appointed through a separate memorandum.

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The primary responsibilities of CORs are:

- 1) Technical Liaison. Oversees the contractor's technical effort to ensure that performance is in strict accordance with the terms and conditions of the contract. Is the primary interface between the contractor and the contracting officer on matters pertaining to the contractor's technical performance. Answers technical questions, furnishes technical instruction and guidance to the contractor relating to contract specifications, and any other instructions of a technical nature necessary to perform the work as specified in the contract. CORs are not to tell the Contractor how to perform, but only what is required of a technical nature. If doubt exists as to whether information to be furnished falls within the scope of the contract, the COR is to coordinate action with the contracting officer prior to transmitting the information to the Contractor. Promptly responds to contracting officer queries for technical information and directs the contractor to submit requests for change, deviation or waiver in writing to the contracting officer. Keeps the contracting officer informed regarding communications with the contractor in order to prevent possible misunderstandings or situations that could affect contract terms and conditions and become the basis for future claims against the Government.
- 2) Monitoring contractor performance. Ensures delivery schedules are adhered to and provides quality assurance. Provides status to the contracting officer and other program personnel to ensure compliance with the technical requirements of the contract. If performance is not proceeding satisfactorily, or if problems are anticipated, promptly notifies the contracting officer and may provide a recommended technical course of correction action. Reviews and approves progress reports, technical reports, financial/management reports and other items requiring approval. Notifies the contracting officer if such reports or items should be rejected, stating the basis for rejection.
- 3) Technical Evaluation of Contractor Proposal. Evaluates contractor proposals for modifications and provides a written technical evaluation, to include price or cost elements, to the contracting officer.
- 4) Reviewing and Approving Payments and Acceptance. Reviews invoices and progress payments for accuracy and appropriateness and reports any discrepancies and provides concurrence (or non-concurrence) to the Contracting Officer. Approves payments and accepts work on the appropriate forms for services performed or supplies delivered.
- 5) Administration of Government Property. Submits to the contracting officer and property specialist a written evaluation of the disposition of any material/property furnished by the Government that is accountable to the contract.
- 6) Security. Coordinates all security requirements of the contract with the contractor and the agency security office, to include DD254s and contractor access to NGA networks. Ensures AIS accounts of departing NGA contractor on-site personnel are cancelled expeditiously. Keeps track of any classified documents or data provided and ensures return or destruction upon completion of the contract.
- 7) Maintenance of Files. Keeps a file of all records related to the contract to include, but not limited to, the contract, e-mail correspondence, formal written correspondence, reports, receiving and acceptance reports/forms, technical evaluations, trip reports, meeting notes, status reports, past performance reports, government property reports and closeout records.
- 8) Administration of On-Site contractor personnel information. Maintains information on contractors, prime and subs, performing on-site at NGA facilities. Coordinates with the contractors and the Human Resource Office (HR) all contractor data changes, to include arrival and departure, names, physical location(s), NGA organization code of office responsible for contractor-occupied-space, and employer name, address and phone. Approves badging of contractors upon contractor completion and submittal of Contractor Data Input Record Form to HR and a standardized NGA non-disclosure statement.

CORs shall not direct the contractor in any manner that would be of the type of supervision or control that converts an individual who is an independent Contractor (such as a contractor employee) into a Government employee.

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Notwithstanding the delegated duties listed herein, the COR does not possess the authority of a contracting officer and, therefore, shall not alter the terms and conditions of the contract in any way, to include any commitments or changes that will affect cost, price, quality, quantity, delivery, or any other term or condition of the contract. The contracting officer is the only official with the authority to enter into or modify contractual agreements or commitments. Unauthorized acts could result in personal liability.

The duties and responsibilities set forth herein are not intended to be all-inclusive. The contracting officer may delegate additional functions as deemed necessary.

COR appointment and termination on a specific contract shall be effective upon contract/order award or execution of a modification to the contract by the contracting officer.

(End of Clause)

G.3 SUBMISSION OF INVOICE - DOD FMFO J-8 NATIONAL GEOSPATIAL-INTELLIGENCE AGENCY (NGA) (OCT 2023) -FOR USE IN CONTRACTS PAID BY THE NGA VENDOR PAY OFFICE

(a) The contractor shall prepare each invoice in accordance with the Prompt Payment Act and email one copy of the invoice to FMFOINSP@nga.mil.

(b) At the same time of submission of the invoice to the DOD FMFO J-8 NGA Vendor Pay Office, the contractor shall email a copy to the Contract Specialist and Contracting Officer (CO), and a copy to the Contracting Officer's Representative (COR) at the address set forth in the clause at 5X252.201.602-2-91, Contracting Officer's Representative (COR), if applicable. The contractor shall ensure that the invoice submitted to the payment office is the same invoice that is submitted to the CO, the COR, and the designated DCAA office when clause 5X252.242-9000 is used, without alteration.

(c) Upon receipt of the invoice, the COR will complete the receiving report and submit via the RRPT database tool. A copy of the completed receiving report shall also be provided to the Contracting Officer shown on the face of this contract/order.

(d) Payments will be made by DOD FMFO J-8 NGA Vendor Pay Office, 3838 Vogel Rd, Arnold, MO 63010.

(e) Contractors wishing to check the payment status of their vouchers may do so by calling NGA / DOD FMFO J-8 NGA Vendor Support at (636) 321-5251. In addition, questions may be directed to the COR. In the absence of a COR, contact the Procurement Contracting Officer (PCO), whose name and contact information appear on the face page of this contract/order.

(End of Clause)

G.4 APPROVING PAYMENTS (COST REIMBURSEMENT, TIME AND MATERIALS, AND LABOR HOUR CONTRACTS) (MAR 2023)

(a) Interim Voucher Receipt and Approval in accordance with DFARS 242.803(b)(i)(A) and (B), the contractor shall prepare an original and three (3) copies of each voucher in accordance with the applicable Prompt Payment Clause (see 5X52.232-9000). The remaining copies of the vouchers shall be submitted to the Contracting Officer shown on page 1 of the contract/modification and the Contracting Officer's Representative shown in Section G.

(b) In the event discrepancies are discovered by the Contracting Officer/Contracting Officer's Representative before payment of the voucher, the Contracting Officer/Contracting Officer's Representative will notify the DCAA auditor, who will coordinate resolution of the discrepancies and secure a corrected voucher as deemed necessary. Copies of the corrected voucher will be submitted to the Contracting Officer/Contracting Officer's Representative. If an offset is required due to a discrepancy on a paid voucher, then the contractor will show the offset on a subsequent voucher.

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(c) Completion/Final Voucher: The contractor shall submit final vouchers and closing documents to DCAA and the Contracting Officer. After DCAA review, the Contracting Officer approves all completion/final vouchers(s) and sends to the paying office.

(End of Clause)

G.5.1 DFARS PGI 204.7108 Payment Instructions

See: https://www.acq.osd.mil/dpap/dars/pgi/pgi.htm/current/PGI204_71.htm#payment_instructions

SECTION H - Special Contract Requirements

H.1 DORMANT ACCOUNT REVIEW-QUARTERLY PARTICIPATION

The Dormant Account Review, Quarterly (DAR-Q) process, is the Department of Defense (DoD) requirement to increase the Department's and NGA's ability to use available appropriations before they expire and ensure remaining open obligations are valid and liquidated before the cancellation of the appropriation. NGA disseminates and receives DAR-Q information to and from NGA's Industry Partners using the National Reconnaissance Office (NRO) unclassified Acquisition Research Center (ARC) website. NGA provides consolidated lists of lines of accounting for validation, of which contractor participation is mandatory.

Contractors holding NGA contracts and/or orders are required to support the NGA DAR-Q process. Each contractor must select two points of contact (POCs) to establish and maintain active accounts on the unclassified NRO ARC at <https://acq.westfields.net>.

Contractor POCs use the following information to register:

- 1.) Full name;
- 2.) SSN (Optional);
- 3.) Unclassified email address;
- 4.) DUNS number; and
- 5.) Unclassified telephone number.

From the <https://acq.westfields.net> homepage, click on "Register" in the upper-right-hand corner of the page; follow the instructions, and enter the requested data. Although not required for DAR-Q compliance, POCs possessing a classified email account may enter that information during registration to also create a classified ARC account.

POCs should be aware that account activation requires the registered user to validate the account by email within 24 hours of registration. Questions or problems related to the website or the registration process should be directed to the unclassified Acquisition Center of Excellence (ACE) Help IT Desk at 703-230-6300 or acehelpdesk@westfields.net.

NGA will conduct quarterly DAR-Q reviews in accordance with the DoD Financial Management Regulations (FMR). Contractors with dormant Unliquidated Obligations appearing on any specific quarterly DAR-Q review will be notified via the NRO ARC. Once notified, contractor POCs are required to validate and upload the contractors' responses, including supporting documentation, to the NRO ARC by the due date set forth in the relevant timelines outlined by NGA and the FMR.

H.2 Special Contract Requirements

H.3 KEY PERSONNEL (SEP 2024)

(a) Definition. "Personnel" means employees of the contractor, or any subcontractor(s), affiliates, joint venture partners, or team members, and consultants engaged by any of those entities.

(b) Certain skilled, experienced professional and/or technical personnel positions are essential for successful contractor performance of the work under this contract and are identified below as key personnel:

See PWS for key personnel

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(c) The contractor shall assign to perform this contract those persons whose resumes were submitted with its proposal. No changes of key personnel shall be made except in accordance with this clause.

(d) The contractor shall provide written proposals to change key personnel to the Contracting Officer (CO) at least 30 calendar days prior to the date of the proposed change. Each proposal shall provide a detailed explanation of the circumstances necessitating the proposed change, a complete resume that includes skills, experience, education, training, and security level, information regarding the financial impact of the change, and any other relevant information. All proposed substitutes shall have qualifications that meet or exceed the qualifications of the person to be replaced as determined by the CO.

(e) The CO shall evaluate the contractor's request(s) and proposed change and notify the contractor in writing of approval or disapproval. If the CO does not provide written approval within 15 days of the request this shall constitute disapproval of the proposed replacement. Disapproval of the proposed individual(s) shall not relieve the contractor from complying with the contract requirements or form the basis of any claim for monies, delivery schedule extension, or any other equitable adjustment.

(End of Clause)

H.4 ORGANIZATIONAL CONFLICT OF INTEREST (MAR 2023)

(a) The term "organizational conflict of interest" means that because of other activities or relationships with other persons, a person is unable to or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. The term "person" includes a business organization.

(b) The principals of organizational conflict of interest and descriptions thereof are set forth at FAR Subpart 9.5.

(c) If the offeror/contractor is aware of a potential organizational conflict of interest (OCI), as defined at paragraph (a) above, with respect to this procurement, the offeror shall make immediate and full disclosure in writing to the Contracting Officer.

(d) If in the performance of this contract the contractor discovers a potential organizational conflict of interest with respect to the contract, it shall make an immediate and full disclosure in writing to the Contracting Officer, which shall include a description of the actions the Contractor has taken or proposes to take to avoid, eliminate, or neutralize the conflict. In the event that the Contractor does not disclose a known potential conflict to the Contracting Officer, the Government may terminate the contract for default.

(e) If the Contractor is directed by authorized Government personnel by written tasks or verbal directions (in program review or otherwise), to perform service which the Contractor believes to constitute a potential organizational conflict of interest, the contractor is required to notify the Contracting Officer in writing of the nature of the conflict within ten (10) days after receipt of the Government directive. The Contracting Officer has the sole responsibility for determining whether a conflict does, in fact, exist. No effort shall be expended toward the performance of the services in question until this determination has been made or unless otherwise directed by the Contracting Officer.

(f) The Government has the unilateral right to waive one or more of the provisions of FAR Subpart 9.5 and this clause, on a case-by-case basis, under FAR Part 9.503.

(g) Any restraints negotiated in response to FAR Part 9.507-2 as a condition of award due to an organizational conflict of interest, shall be incorporated into the instant contract or Delivery/Task Order(s) as appropriate. These restraints will have duration of not more than one years after completion of the contract effort.

(h) The Contractor shall insert Paragraphs (a) through (g) of this clause in all subcontracts.

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(End of Clause)

H.5 PROTECTION OF INFORMATION AND NONDISCLOSURE AGREEMENTS (JUN 2009)

(1) Protected Information and Computer Software means, unless specifically excluded by paragraph (2) below, all information and computer software, in any form or media, that in the course of performing work under this contract are disclosed to the Contractor, its subcontractors, or their employees, or to which those persons otherwise are given access to, by (i) NGA, (ii) other government agencies, (iii) foreign governments or (iv) other contractors while directly supporting NGA, which is accompanied by written legends identifying use or disclosure restrictions or disclosed under circumstances that the Contractor knows are subject to use or disclosure restrictions established in writing by the Government.

(2) Protected Information and Computer Software does not include information that:

(i) Has been released to the general public through no action of the undersigned in breach of this agreement or through no action of any other party in breach of any other obligation of confidentiality owing to the Government or the owner of the protected information or computer software;

(ii) Has been lawfully obtained by the recipient outside the course of the performance of this contract;

(iii) Has been properly licensed or provided directly by the owner (or other authorized source) of the information or computer software to the recipient to the extent so licensed or provided;

(iv) Is owned by the recipient or was developed independently of the disclosure hereunder;

or

(v) Has been disclosed to the recipient by the Government with explicit authorization to use or disclose the information for another purpose, to the extent so authorized.

(b) Use and disclosure restrictions. The Contractor shall use and disclose Protected Information and Computer Software only as necessary for the performance of the requirements of this contract. Protected Information and Computer Software may not be used or disclosed for any other purpose, including bid or proposal preparation or business marketing, without the written approval of the Contracting Officer. Furthermore, unless otherwise directed by the Contracting Officer, the Contractor shall comply with all restrictions set forth in any legends, licenses or instructions provided to the Contractor or accompanying Protected Information and Computer Software or other written directives of the Government known to the Contractor. The use and disclosure obligations imposed by this paragraph shall expire as follows:

(1) There shall be no expiration date for the following Protected Information and Computer Software:

(i) Technical data or computer software containing Limited Rights, Restricted Rights, Government Purpose Rights, Special License Rights, or Unlimited Rights legends;

(ii) information or software marked Limited Distribution (LIMDIS);

(iii) information or software marked Source Selection Information;

(iv) contract proposal information marked pursuant to FAR 52.215-1(e) limiting its use for proposal evaluation purposes only;

(v) information and computer software marked Contractor Proprietary or a similar legend;

(vi) data known by the Contractor to be protected by the Privacy Act; and

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(vii) information and software marked Controlled Unclassified Information (CUI) or For Official Use Only (FOUO).

(2) For other information or software accompanied at time of disclosure by a written legend identifying use or disclosure restriction time periods, the expiration date shall be as stated in or derived from the legend.

(3) For all other Protected Information and Computer Software, the expiration date shall be 3 years from the date the information or software is first disclosed to the Contractor.

Notwithstanding the above obligations, the Contractor is not in breach of this agreement if the Contractor uses or discloses Protected Information and Computer Software in response to an order of a court or administrative body of competent jurisdiction, but only to the extent permitted by that authority and only if the Contractor gives the Contracting Officer, to the extent practical, notice of the tribunal's order before the use or disclosure is made that allows NGA a reasonable time to object to the order.

(c) Unauthorized Use or Disclosure. The Contractor shall immediately notify the Contracting Officer of any unauthorized use or disclosure known by the Contractor of Protected Information and Computer Software in violation of the obligations contained in this clause.

(d) Disposition. At the conclusion of performance of work under this contract, the Contractor shall immediately return to the Government all Protected Information and Computer Software in its possession. Furthermore, if an employee of the Contractor who has had access to Protected Information and Computer Software is terminated or reassigned and thus is no longer performing work under this contract, the Contractor shall immediately return all Protected Information and Computer Software in the employee's possession. Moreover, if a Contractor's employee is dedicated to support a specific NGA Office or Directorate or NGA program under this contract, but is subsequently reassigned to support another NGA Office or Directorate or NGA program under this contract, the Contractor shall immediately return all Protected Information or Computer Software in the employee's possession previously furnished by the prior NGA Office or Directorate or NGA program. In lieu of returning Protected Information and Computer Software, the Contracting Officer or Contracting Officer's representative may authorize the destruction of the information or the transfer of the information to another employee of the Contractor working under the contract. Finally, this clause shall not be interpreted as preventing the Contractor from retaining records required by statutes or other clauses of this contract, such as FAR 52.215-2 Audit and Records--Negotiations.

(e) Third party beneficiaries. This clause is executed for the benefit of the Government and the owners of Protected Information and Computer Software. The Government and the owners of Protected Information and Computer Software (and their delegates, successors and assignees) are third party beneficiaries of the obligations contained in this clause who, in addition to any other legal rights they may have, are intended to have the rights of direct action against the Contractor or any person to whom the Contractor has disclosed or released Protected Information and Computer Software, to seek damages from any breach of this clause, or to otherwise enforce this clause.

(f) Duration. The above obligations imposed by this clause shall survive the termination or completion of this contract.

(g) Classified Information. This clause is in addition to and in no manner abrogates requirements, obligations or remedies regarding the protection of classified information and does not supersede the requirements of any laws, regulations, other directives or nondisclosure agreements regarding classified information.

(h) Other Restrictions. This agreement does not abrogate any other obligations currently placed upon the Contractor or which may be imposed upon the Contractor in the future by the Government or other persons; or remedies afforded those persons regarding those obligations.

(i) Nondisclosure agreements. The Contractor shall require and ensure that each of its employees who may receive or be given access to Protected Information and Computer Software signs the nondisclosure agreement provided by attachment to this contract prior to the employee performing work under this contract covered by the nondisclosure agreement. The Contractor shall maintain copies of signed nondisclosure agreements for a period of at least three

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years after final payment under this contract. At the direction of the Contracting Officer, the Contractor shall make those agreements available for inspection by the Contracting Officer and will furnish the Contracting Officer copies of those agreements at no additional cost to the Government if requested by the Contracting Officer.

(j) The Contractor shall include the substance of this clause in all subcontracts under this contract in which subcontractors may be disclosed or granted access to Protected Information and Computer Software.

(End of Clause)

H.6 REOPENER CLAUSE - DOWNWARD ADJUSTMENT ONLY (DEC 2010)

(a) Contract/Engineering Change Proposal (ECP), number(s) TBD - after contract award, utilized indirect and/or labor rates that were submitted to the Defense Contract Audit Agency (DCAA) but not approved. The Government and the Contractor have agreed that upon negotiation of a new Forward Pricing Rate Agreement (FPRA) for the indirect and labor rates, the value for this contract is subject to adjustment in accordance with the provisions of this clause.

(b) The Contractor shall notify the Procuring Contracting Officer (PCO) upon completion of negotiations of the new FPRA, recalculate the Contract/ECP values, and forward a supplemental cost proposal to the PCO within 30 calendar days of completion of the FPRA negotiations. The supplemental cost proposal shall be supported by cost and pricing data (FAR 15.401) and a Certificate of Current Cost and Pricing Data (FAR 15.406-2). In the event that the application of the new FPRA rates results in a Contract/ECP value equal to, or greater than the current established Contract/ECP values, the current values shall not be adjusted for the purposes of this clause.

(c) If determined necessary by the PCO, the Contractor agrees to commence negotiations concerning the amount of the adjustment within 30 days of receipt of the supplemental proposal by the Government.

(d) Should the Contractor fail to submit the information required in paragraph (b), or should there be no agreement as to the amount of the cost adjustment contemplated by this clause, then the PCO may make a unilateral determination and adjust the estimated cost and fee accordingly.

(e) Failure of the Government and the Contractor to agree on the amount of the adjustment shall be subject to the Disputes clause at Federal Acquisition Regulation 52.233-1.

(f) The cost and rate per hour and/or the indirect rates were established using the following rates:

See Attachment None to Section J.

(g) Final payment on this contract will be made only after the above rate adjustment is completed. A maximum of 1% of the total price may be withheld per this clause pending rate agreement.

(h) Except as provided herein, all other terms and conditions of this contract remain in full force and effect.

(End of Clause)

H.7 Prohibition Regarding Exclusive Teaming Arrangements

(a) Definition: Exclusive teaming arrangements means an agreement between two or more companies in writing or otherwise:

1. To team together to pursue a Government contract, in prime contractor-subcontractor relationship or as a joint venture, and not team with any other competitors for that contract; or
2. That precludes a potential offeror from competing for a Government contract.

(b) Prohibition: Offerors are prohibited from entering into any exclusive teaming arrangements associated with this solicitation or resultant contract. The Government has determined that such arrangements unduly limit competition

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and will prohibit Offerors for consideration.

H.8 PROHIBITION AGAINST RECRUITING IN NGA FACILITIES

(a) The contractor shall inform its employees and subcontractors that they are not permitted to engage in employment recruitment while in any facility controlled by NGA or to use NGA communications systems (e.g. cable and computer systems) and nonpublic information in connection with recruitment without written approval of the Contracting Officer. For purposes of this clause, recruitment refers to discussions of future employment with the contractor or subcontractor initiated by an employee of the contractor or subcontractor; distribution of employment forms or other employment paperwork, or similar activities directed towards obtaining the employment of an NGA employee by the contractor or subcontractor. Any contractor or subcontractor employee who violates this policy may be denied further access to NGA facilities and systems. The contractor shall emphasize this fact to its employees and subcontractors and shall include the substance of this clause in each subcontract issued under this contract.

(b) Exclusion under the circumstances described in paragraph (a) of this clause shall not relieve the contractor from full performance of the requirements of this contract, nor will it provide the basis for any claims against the Government.

SECTION I - Contract Clauses

I.1 Contract Clauses

I.2 52.202-1 DEFINITIONS. (JUN 2020)

I.3 52.203-3 GRATUITIES. (APR 1984)

I.4 52.203-5 COVENANT AGAINST CONTINGENT FEES. (MAY 2014)

I.5 52.203-6 RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT. (JUN 2020)

I.6 52.203-7 ANTI-KICKBACK PROCEDURES. (JUN 2020)

I.7 52.203-8 CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY. (MAY 2014)

I.8 52.203-10 PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY. (MAY 2014)

I.9 52.203-12 LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS. (JUN 2020)

I.10 52.203-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT. (NOV 2021)

I.11 52.204-2 SECURITY REQUIREMENTS. (MAR 2021)

I.12 52.204-9 PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL. (JAN 2011)

I.13 52.204-10 REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS. (JUN 2020)

I.14 52.204-12 UNIQUE ENTITY IDENTIFIER MAINTENANCE. (OCT 2016)

I.15 52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE. (OCT 2018)

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I.16 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS. (DEC 2014)

I.17 52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS. (NOV 2021)

I.18 52.204-23 PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB COVERED ENTITIES. (DEC 2023)

I.19 52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT. (NOV 2021)

I.20 52.204-27 PROHIBITION ON A BYTEDANCE COVERED APPLICATION. (JUN 2023)

I.21 52.209-6 PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED. (JAN 2025)

I.22 52.209-9 UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS. (OCT 2018)

I.23 52.209-10 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS. (NOV 2015)

I.24 52.210-1 MARKET RESEARCH. (NOV 2021)

I.25 52.215-8 ORDER OF PRECEDENCE - UNIFORM CONTRACT FORMAT. (OCT 1997)

I.26 52.215-10 PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA. (AUG 2011)

I.27 52.215-11 PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA - MODIFICATIONS. (JUN 2020)

I.28 52.215-12 SUBCONTRACTOR CERTIFIED COST OR PRICING DATA. (JUN 2020)

I.29 52.215-19 NOTIFICATION OF OWNERSHIP CHANGES. (OCT 1997)

I.30 52.215-21 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA - MODIFICATIONS. (NOV 2021)

I.31 52.215-23 LIMITATIONS ON PASS-THROUGH CHARGES. (JUN 2020)

I.32 52.216-8 FIXED FEE. (JUN 2011)

I.33 52.216-11 COST CONTRACT - NO FEE. (APR 1984)

I.34 52.216-18 ORDERING. (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from date of IDIQ award through seven years after date of IDIQ award.

I.35 52.216-19 ORDER LIMITATIONS. (OCT 1995)

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(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than 10,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(1) Any order for a single item in excess of \$100,000,000.00;

(2) Any order for a combination of items in excess of \$100,000,000.00; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in subparagraph (b)(1) or (2) above.

(d) Notwithstanding paragraphs (b) and (c) above, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 10 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

I.36 52.216-22 INDEFINITE QUANTITY. (OCT 1995)

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after 365 days after the end of the IDIQ ordering period.

I.37 52.219-8 UTILIZATION OF SMALL BUSINESS CONCERNS. (JAN 2025)

I.38 52.219-9 SMALL BUSINESS SUBCONTRACTING PLAN. (JAN 2025)

I.39 52.222-2 PAYMENT FOR OVERTIME PREMIUMS. (JUL 1990)

(a) The use of overtime is authorized under this contract if the overtime premium cost does not exceed 0 or the overtime premium is paid for work-

I.40 52.222-4 CONTRACT WORK HOURS AND SAFETY STANDARDS - OVERTIME COMPENSATION. (MAY 2018)

I.41 52.222-37 EMPLOYMENT REPORTS ON VETERANS. (JUN 2020)

I.42 52.222-40 NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT. (DEC 2010)

I.43 52.222-50 COMBATING TRAFFICKING IN PERSONS. (NOV 2021)

I.44 52.222-54 EMPLOYMENT ELIGIBILITY VERIFICATION. (JAN 2025)

I.45 52.222-62 PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706. (JAN 2022)

I.46 52.223-5 POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION. (MAY 2024)

I.47 52.223-23 SUSTAINABLE PRODUCTS AND SERVICES. (MAY 2024)

I.48 52.225-13 RESTRICTIONS ON CERTAIN FOREIGN PURCHASES. (FEB 2021)

I.49 52.226-7 DRUG-FREE WORKPLACE. (MAY 2024)

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I.50 52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING. (MAY 2024)

I.51 52.230-2 COST ACCOUNTING STANDARDS. (JUN 2020)

I.52 52.230-6 ADMINISTRATION OF COST ACCOUNTING STANDARDS. (JUN 2010)

I.53 52.232-17 INTEREST. (MAY 2014)

I.54 52.232-18 AVAILABILITY OF FUNDS. (APR 1984)

I.55 52.232-22 LIMITATION OF FUNDS. (APR 1984)

I.56 52.232-23 ASSIGNMENT OF CLAIMS. (MAY 2014)

I.57 52.232-25 PROMPT PAYMENT. (JAN 2017)

I.58 52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER - SYSTEM FOR AWARD MANAGEMENT. (OCT 2018)

I.59 52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS. (JUN 2013)

I.60 52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS. (MAR 2023)

I.61 52.233-1 DISPUTES. (MAY 2014)

I.62 52.233-3 PROTEST AFTER AWARD. (AUG 1996)

I.63 52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM. (OCT 2004)

I.64 52.239-1 PRIVACY OR SECURITY SAFEGUARDS. (AUG 1996)

I.65 52.240-1 PROHIBITION ON UNMANNED AIRCRAFT SYSTEMS MANUFACTURED OR ASSEMBLED BY AMERICAN SECURITY DRONE ACT-COVERED FOREIGN ENTITIES.

I.66 52.242-1 NOTICE OF INTENT TO DISALLOW COSTS. (APR 1984)

I.67 52.242-4 CERTIFICATION OF FINAL INDIRECT COSTS. (JAN 1997)

I.68 52.242-5 PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS. (JAN 2017)

I.69 52.242-13 BANKRUPTCY. (JUL 1995)

I.70 52.243-3 CHANGES - TIME-AND-MATERIALS OR LABOR-HOURS. (SEP 2000)

I.71 52.243-7 NOTIFICATION OF CHANGES. (JAN 2017)

(b) *Notice.* The primary purpose of this clause is to obtain prompt reporting of Government conduct that the Contractor considers to constitute a change to this contract. Except for changes identified as such in writing and signed by the Contracting Officer, the Contractor shall notify the Administrative Contracting Officer in writing promptly, within 10 (to be negotiated) calendar days from the date that the Contractor identifies any Government conduct (including actions, inactions, and written or oral communications) that the Contractor regards as a change to the contract terms and conditions. On the basis of the most accurate information available to the Contractor, the notice shall state-

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(d) *Government response*. The Contracting Officer shall promptly, within 10 (to be negotiated) calendar days after receipt of notice, respond to the notice in writing. In responding, the Contracting Officer shall either-

I.72 52.244-2 SUBCONTRACTS. (JUN 2020)

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts: []

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations: []

I.73 52.244-5 COMPETITION IN SUBCONTRACTING. (AUG 2024)

I.74 52.245-1 GOVERNMENT PROPERTY. (SEP 2021)

I.75 52.246-25 LIMITATION OF LIABILITY - SERVICES. (FEB 1997)

I.76 52.249-6 TERMINATION (COST-REIMBURSEMENT). (MAY 2004)

I.77 52.249-14 EXCUSABLE DELAYS. (APR 1984)

I.78 52.250-1 INDEMNIFICATION UNDER PUBLIC LAW 85-804. (APR 1984)

I.79 52.251-1 GOVERNMENT SUPPLY SOURCES. (APR 2012)

I.80 52.251-2 INTERAGENCY FLEET MANAGEMENT SYSTEM VEHICLES AND RELATED SERVICES. (JAN 1991)

I.81 52.252-2 CLAUSES INCORPORATED BY REFERENCE. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): acquisition.gov

(End of clause)

I.82 52.252-4 ALTERATIONS IN CONTRACT. (APR 1984)

Portions of this contract are altered as follows: N/A

(End of clause)

I.83 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES. (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the clause.

(b) The use in this solicitation or contract of any N/A (48 CFR []) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of clause)

I.84 252.201-7000 CONTRACTING OFFICER'S REPRESENTATIVE. (DEC 1991)

I.85 252.203-7000 REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS. (SEP 2011)

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I.86 252.203-7001 PROHIBITION ON PERSONS CONVICTED OF FRAUD OR OTHER DEFENSE-
CONTRACT-RELATED FELONIES. (JAN 2023)

I.87 252.203-7002 REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS. (DEC 2022)

I.88 252.203-7003 AGENCY OFFICE OF THE INSPECTOR GENERAL. (AUG 2019)

I.89 252.204-7003 CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT. (APR 1992)

I.90 252.204-7004 ANTITERRORISM AWARENESS TRAINING FOR CONTRACTORS. (JAN 2023)

I.91 252.204-7012 SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT
REPORTING. (MAY 2024)

I.92 252.204-7018 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE
TELECOMMUNICATIONS EQUIPMENT OR SERVICES. (JAN 2023)

I.93 252.204-7020 NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS. (NOV 2023)

I.94 252.204-7021 CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL
CERTIFICATION LEVEL REQUIREMENT. (JAN 2023)

I.95 252.204-7022 EXPEDITING CONTRACT CLOSEOUT (MAY 2021)

I.96 252.205-7000 PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS. (OCT
2024)

I.97 252.219-7003 SMALL BUSINESS SUBCONTRACTING PLAN (DOD CONTRACTS).-BASIC (DEC 2019)

I.98 252.222-7006 RESTRICTIONS ON THE USE OF MANDATORY ARBITRATION AGREEMENTS. (JAN
2023)

I.99 252.225-7004 REPORT OF INTENDED PERFORMANCE OUTSIDE THE UNITED STATES AND
CANADA-SUBMISSION AFTER AWARD. (JUL 2024)

I.100 252.225-7007 PROHIBITION ON ACQUISITION OF CERTAIN ITEMS FROM COMMUNIST CHINESE
MILITARY COMPANIES. (DEC 2018)

I.101 252.225-7012 PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES. (APR 2022)

I.102 252.225-7048 EXPORT-CONTROLLED ITEMS. (JUN 2013)

I.103 252.225-7056 PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME.
(JAN 2023)

I.104 252.225-7058 POSTAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN
THE PEOPLE'S REPUBLIC OF CHINA. (JAN 2023)

I.105 252.225-7060 PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR
AUTONOMOUS REGION. (JUN 2023)

I.106 252.225-7061 RESTRICTION ON THE ACQUISITION OF PERSONAL PROTECTIVE EQUIPMENT
AND CERTAIN OTHER ITEMS FROM NON-ALLIED FOREIGN NATIONS. (JAN 2023)

I.107 252.226-7003 DRUG-FREE WORK FORCE. (AUG 2024)

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I.108 252.227-7013 RIGHTS IN TECHNICAL DATA-OTHER THAN COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (JAN 2025)

Technical data to be furnished with restrictions ¹	Basis for assertion ²	Asserted rights category ³	Name of person asserting restrictions ⁴
[(LIST)]	[(LIST)]	[(LIST)]	[(LIST)]

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these data are restricted by Contract Number [[Insert contract number]], License Number [[Insert license identifier]]. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings.

I.109 252.227-7017 IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS. (JAN 2025)

Technical data or computer software to be furnished with restrictions ¹	Basis for assertion ²	Asserted rights category ³	Name of person asserting restrictions ⁴
[(LIST) ⁵]	[(LIST)]	[(LIST)]	[(LIST)]

I.110 252.227-7030 TECHNICAL DATA - WITHHOLDING OF PAYMENT. (MAR 2000)

I.111 252.227-7037 VALIDATION OF ASSERTED RESTRICTIONS ON TECHNICAL DATA. (JAN 2025)

I.112 252.232-7003 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS. (DEC 2018)

I.113 252.232-7010 LEVIES ON CONTRACT PAYMENTS. (DEC 2006)

I.114 252.237-7010 PROHIBITION ON INTERROGATION OF DETAINEES BY CONTRACTOR PERSONNEL. (JAN 2023)

I.115 252.242-7006 ACCOUNTING SYSTEM ADMINISTRATION. (JAN 2025)

I.116 252.243-7002 REQUESTS FOR EQUITABLE ADJUSTMENT. (DEC 2022)

I.117 252.244-7000 SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES. (NOV 2023)

I.118 252.244-7001 CONTRACTOR PURCHASING SYSTEM ADMINISTRATION. (JAN 2025)

I.119 252.245-7000 GOVERNMENT-FURNISHED MAPPING, CHARTING, AND GEODESY PROPERTY. (APR 2012)

I.120 252.249-7002 NOTIFICATION OF ANTICIPATED CONTRACT TERMINATION OR REDUCTION. (DEC 2022)

I.121 252.251-7000 ORDERING FROM GOVERNMENT SUPPLY SOURCES. (AUG 2012)

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Contractor's Billing Address (include point of contact and telephone number): []

Government Remittance Address (include point of contact and telephone number): []

I.122 SAFEGUARDING INFORMATION DEVELOPED FROM ARTIFICIAL INTELLIGENCE/ MACHINE LEARNING (AI/ML) (SEP 2024)

The contractor shall not incorporate any data used, supplied, or derived from this contract into its software for use outside of the United States Government, or use the data for any purpose other than for the United States Government without express written permission from the Contracting Officer (CO). If the contractor modifies any software it uses to perform this contract using data and other information delivered or derived from performance of this contract, any such software modification shall not be used outside of the United States Government without express written permission from the CO.

(End of Clause)

I.123 PUBLIC RELEASE OF INFORMATION (MAR 2023)

(a) Except as provided in paragraph (b) of this clause, information pertaining to this contract shall not be released to the public unless authorized by the Contracting Officer in accordance with DFARS 252.204-7000, Disclosure of Information. Requests for approval to release information pertaining to this contract (other than past performance) shall be submitted to the Contracting Officer by means of NGA Form 5230-1, National Geospatial-Intelligence Agency Request for Clearance for Public Release.

(b) The contractor may provide past performance information regarding this contract, without completing an NGA Form 5230-1 and without Contracting Officer approval when submission of such information is to the Office of the Director of National Intelligence (ODNI), the Central Intelligence Agency (CIA), the National Reconnaissance Office (NRO), the National Security Agency (NSA), the Defense Intelligence Agency (DIA), and NGA to support source selections at those agencies. The contractor is responsible for the proper classification and handling of such information and shall provide a copy of the information submitted to other agencies to the Contracting Officer.

(End of clause)

I.124 IDENTIFICATION OF EXPORT CONTROLLED ITEMS (NOV 2024)

(a) Contractors performing on NGA contracts or otherwise acting on NGA's behalf (e.g. performing on an accommodation procurement or an agreement not subject to the FAR) who are required pursuant to their contractual obligations to provide to NGA items controlled for export under the ITAR or subject to the EAR, or to export any such items, must:

(1) Ensure that the contractor and any subcontractors are familiar and compliant with all applicable US export control laws and regulations; and

(2) Either:

(i) Apply for and receive a license or other authorization from the Department of State's Directorate of Defense Trade Controls or the Department of Commerce's Bureau of Industry and Security, as applicable, for the export; or,

(ii) Assert an appropriate license exemption in accordance with the ITAR, or license exception in accordance with the EAR, as applicable, pertaining to the export.

(3) If asserting an exemption or exception as described in (2)(ii), above, the contractor will provide to the Office of Contract Services:

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- (i) The correct jurisdiction and classification of the item(s) under the ITAR or the EAR, as applicable, to be exported under the contract;
- (ii) A list of the countries to which the item(s) will be exported;
- (iii) Written notice from an empowered official within the contracting company that identifies the exemption(s) or exception(s) it intends to assert; and
- (iv) All information required by the ITAR or the EAR, as applicable, to successfully address each requirement of the exemption(s) or exception(s) asserted.

(End of Clause)

I.125 ITEM UNIQUE IDENTIFICATION AND VALUATION (OCT 2015)

In accordance with NARI 5X211.274-6-90, substitute the following paragraphs (c)(3), (c)(4), (f)(1), and (f)(2) for paragraphs (c)(3), (c)(4), (f)(1), and (f)(2), respectively, of the clause at DFARS 252.211-7003:

- (c) (3) (S-90) The Contractor shall not mark items using two dimensional data matrix symbology.
- (c) (4) (S-91) The Government shall provide NGA barcode labels, containing unique item identifiers, to the Contractor. The Contractor shall affix the NGA barcode labels to each item.
- (f) (1) (S-92) The Contractor shall not report items to the DoD IUID Registry nor to the Wide Area Work Flow (WAWF).
- (f) (2) (S-93) The Contractor shall report all items, including Contractor Acquired Property (CAP), using the NGA Total Asset Management (TAM) Asset Delivery Report.

(End of Clause)

I.126 SMALL BUSINESS GOAL (NOV 2013)

(a) The magnitude of this contract may require businesses to team, partner, and/or subcontract with other business concerns large and small. The Government has set a small business subcontracting goal of See Section L Instructions % of total contract dollars. All large business contractors will be expected to meet and maintain their approved subcontracting goals through the life of the contract in accordance with applicable statutory and regulatory requirements.

(b) Data regarding each large business contractor's small business subcontractor performance shall be provided as follows:

- (1) After contract award, large business contractors shall submit data (See paragraph (2)) that identifies the small business subcontractors and work that has been awarded to them in accordance with FAR Part 52.219-9(d)(10)(ii).
- (2) The NGA Program Small Business Performance slide (see template in NARI Part 5X53 - Forms) in Section J or commercial contract equivalent shall be submitted during the Program Management Review and based on the approved small business subcontracting plan that is a material requirement of this contract.

(End of Clause)

I.127 UNAUTHORIZED USE OF NGA NAME, SEAL AND INITIALS (JUN 2006)

(a) As provide in 10 U.S.C. Section 425, no person may, except with the written permission of both the Secretary of Defense and the Director of National Intelligence, knowingly use the words "National Geospatial-Intelligence

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Agency", "National Imagery and Mapping Agency", or "Defense Mapping Agency," the initials "NGA", "NIMA", or "DMA," the seal of National Geospatial-Intelligence Agency, National Imagery and Mapping Agency, or the Defense Mapping Agency, or any colorable imitation of such words, initials, or seal in connection with any merchandise, retail product, impersonation, solicitation, or commercial activity in a manner reasonably calculated to convey the impression that such use is approved, endorsed, or authorized by the Secretary of Defense and the DNI.

(b) Whenever it appears to the U.S. Attorney General that any person is engaged or about to engage in an act or practice which constitutes or will constitute conduct prohibited by paragraph (a), the Attorney General may initiate a civil proceeding in a district court of the United States to enjoin such act or practice. Such court shall proceed as soon as practicable to hearing and determination of such action and may, at any time before final determination, enter restraining orders or prohibitions, or take such other action as is warranted, to prevent injury to the United States, or to any person or class of persons for whose protection the action is brought.

(End of Clause)

I.128 INSURANCE (SEP 2003)

Pursuant to FAR 52.228-5, Insurance - Work on a Government Installation, the contractor shall acquire and maintain during the entire performance period of this contract, insurance of at least the following kinds and minimum amounts as set forth below:

(a) Workman's Compensation and Employer's Liability Insurance: In accordance with amounts specified by the laws of the state in which the work is to be performed under this contract. In the absence of such state laws, an amount of \$100,000 shall be required and maintained.

(b) General Liability Insurance: Bodily injury liability in the minimum amount of \$500,000 per occurrence.

(c) Automobile Liability Insurance: In the amounts of at least \$200,000 per person and \$500,000 per occurrence for bodily injury and \$20,000 per occurrence for property damage.

(d) Aircraft public and passenger liability when aircraft are used in connection with performing the contract: \$200,000 per person and \$500,000 per occurrence for bodily injury other than passenger liability, and \$200,000 per occurrence for property damage. Coverage for passenger liability and bodily injury shall be \$200,000 multiplied by the number of seats or passengers, whichever is greater.

Execution of this proposal/contract shall constitute certification that the contractor is in compliance with all contractual requirements and any applicable State or Federal laws with respect to insurance requirements.

(End of clause)

I.129 COMPTROLLER GENERAL ACCESS TO RECORDS (JUL 2001)

The Comptroller General, at its discretion, shall have access to and the right to examine records of any party to this agreement or any entity that participates in the performance of this agreement that directly pertains to, and involved transactions relating to, the agreement.

Excepted from this requirement is any party to this agreement or any entity that participates in the performance of the agreement, or any subordinate element of such party or entity, that has not entered into any other agreement (contract, grant, cooperative agreement, or "other transaction") that provides for audit access by a government entity in the year prior to the date of the agreement.

This clause shall not be construed to require any party or entity, or any subordinate element of such party or entity that participates in the performance of the agreement, to create or maintain any record that is not otherwise maintained in the ordinary course of business or pursuant to a provision of law.

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The Comptroller General shall have access to these records until three years after the date the final payment is made by the United States.

The recipient of the agreement shall flow down this provision to any entity that participates in the performance of the agreement.

Local Prescription:

1. All Agreement Officers shall include the enclosed clause that provides access by the Comptroller General to records that directly pertain to other transactions for prototype solicitations and agreements awarded under the authority of 10 U.S.C. 2371. This clause is required only for those agreements in which the total government payments are in excess of \$5,000,000.
2. However, if a contractor or member of a consortium being awarded the other transaction for prototype agreement has not entered into a contract, grant, cooperative agreement or other transaction agreement that contains such an audit clause within the year prior to the date of the prototype agreement, there is no requirement for the audit clause.
3. This requirement may be waived by the head of the contracting activity if it is determined that it would not be in the public interest to apply the requirement to the agreement. If the requirement is waived, a notification must be transmitted to the Committees on Armed Services of the Senate and the House Representatives, the Comptroller General, and the Director, Defense Procurement prior to execution of the agreement.
4. The Agreement Officer must notify the head of the contracting activity of any situations in which (a) companies refuse to enter into agreements as a result of the inclusion of the subject clause) or (b) the clause restricted NIMA's access to companies that typically do not do business with the Department of Defense.

(End of Clause)

I.130 CONTRACTOR EMPLOYEE DATA FOR ACCESS TO NGA FACILITIES OR SENSITIVE SYSTEMS (OCT 2005)

1. This clause defines the contractor's responsibilities for providing accurate contractor data, and providing updates to that data, for NGA's Human Capital Management System (HCMS). NGA requires that all contractors provide initial and timely updates to HCMS data for all personnel performing under this contract who have access to NGA facilities or sensitive systems, as determined by the contracting officer.
2. The Contractor shall:
 - a. Provide the Contracting Officers Representative (COR) a Point of Contact (POC) for providing and maintaining contractor personnel data for the HCMS database. The POC shall be provided to the COR, in writing, within 10 days of contract award (or modification inserting this clause). For contracts with an on-site Project Lead or Program Manager, this person shall serve as the POC.
 - b. Provide the COR initial HCMS data for their personnel within 10 days of contract award or modification. The information that is to be provided for HCMS shall include: persons full legal name, social security number, citizenship status, NGA contract number, prime contractor name, NGA location and organization where the person will be working, and a 24/7 emergency contact point for the contractor.
 - c. Notify the COR of all contractor data changes within 10 days of the change. Changes include new or departing contractor personnel and any change to information provided in paragraph b above. If the contract number under which a contractor or its personnel work changes, the POC for the contract receiving the personnel shall notify the COR within 10 days of the change.

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d. Provide response to all inquiries made by NGA as to the validity and completeness of contractor data records in the HCMS database within two weeks of date of request.

e. Ensure all employees attend in-processing and out-processing briefings.

(End of Clause)

I.131 CONTRACTOR IDENTIFICATION (JAN 2012)

The contractor shall ensure that contractor personnel, including their sub-contractor personnel, identify themselves as contractor personnel, by introducing themselves or being introduced as contractor personnel when:

(1) attending meetings with Government personnel or contractors performing under a contract awarded to support NGA requirements,

(2) answering government telephones,

(3) providing any type of written or electronic mail correspondence, and

(4) working in any other situation where their actions could be construed as an official Government act or representation of the Government.

The contractor shall ensure that contractor personnel possess and properly display Government-issued identification badges when on NGA property or when attending NGA meetings not located on NGA property.

The contractor will ensure that contractor personnel, when performing in a contractor capacity, refrain from using their retired or reserve component military rank or title in all written and verbal communications.

The Government may include the results of the contractor's ability to adhere to this clause in quality assurance surveillance plans and award fee plans as part of the overall administration of this contract.

(End of Clause)

I.132 GEOINT STANDARDS AND PROFILE IMPLEMENTATION/COMPLIANCE FOR A NEW PROGRAM (HEREAFTER REFERRED TO AS NPX) (DEC 2011)

(a) The Contractor shall engage in a collaborative/iterative process with NGA [specifically the National Center for Geospatial Intelligence Standards (NCGIS) and the NGA Architecture and Standards Board's (NASB) Integrated Architecture Working Group (IAWG)], to identify and assess standards selected from NSG Enterprise Architecture Standards Views (StdV-1 and StdV-2) in order to implement mandated

standards through the use of Capability Standards Profiles (CSP) for the specific GEOINT capability being delivered.

(b) The Contractor shall review NSG StdV-1 and StdV-2 updates for new and emerging standards annually, in accordance with DOD IT Standards Registry (DISR)/IC Standards Registry (ICSR) mandated baselines, which may impact the NPX CSP. This

assessment shall include cost data, interoperability factors and developer recommendations which will be provided during scheduled program reviews established by Program Management.

(c) The Contractor shall use, reuse and/or extend existing mandated or emerging GEOINT standards and profiles where such use/reuse benefits interoperability and supports cost, schedule, and performance measures. Only where existing standards fail to meet a specific functionality supporting the program's desired capability may the Contractor recommend alternative standards to be followed in the NPX CSP design. These recommendations will

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include supporting rationale, drawing on the contractor's knowledge of applicable industry standards, other standards cited in the DISR, ICSR/IC Enterprise Registry and Repository (ER2), or evolving/emerging community standards.

(d) The Contractor shall submit waivers through the Program Manager to the NASB when selecting/implementing standards inconsistent with NGA's StdV-1 and/or those prescribed in DISR/ICSR/ER2, and may be required to brief the government regarding the use of non-StdV-1 standards if they are necessary to satisfy NPX capability and functionality.

(e) The Contractor shall provide the Government access to the CSPs and required architecture views, and present status of CSP and standards conformance at Government readiness reviews if requested.

(f) The Contractor shall obtain Government approval for changes to the NPX CSP. At a minimum, approval shall come from the Program Office/NCCB and the NASB for impacts to the Architecture and NSG interoperability.

(g) The Contractor shall obtain final approval from the cognizant NGA contracting officer prior to implementing NPX CSP changes that affect the requirements of the contract.

(End of Clause)

I.133 CONTINGENCY PLANNING REQUIREMENTS FOR TECHNOLOGY RESOURCES (SEP 2016)

(a) Definitions. See Appendix A of this clause.

(b) Applicability. This clause applies whether the entire contract or task order (hereafter 'contract'), or portion thereof, includes information technology resources or services in which the Contractor is developing a system or application, or operates and sustains any National Geospatial-Intelligence Agency (NGA) system containing, information that directly supports execution of NGA's mission essential function (MEF).

(c) Contractor Responsibilities. The Contractor is responsible for the following:

(1) Developing continuity of operations plans for information systems (hereafter referred to as 'IT Disaster Recovery (ITDR) Plans') consistent with NGA policy and the approach contained in the Contractor's bid or proposal that resulted in the award of this contract. The plan is to continue NGA system operations and to ensure their:

(i) Integrity, guard against improper information modification or destruction, and includes ensuring information non-repudiation and authenticity;

(ii) Confidentiality, preserve authorized restrictions on access and disclosure, including means for protecting personal privacy and proprietary information; and,

(iii) Availability, ensure timely and reliable access to and use of information. A loss of availability is the disruption of access to, or use of, information or an information system. The requirement to develop an ITDR Plan for NGA information systems is directly linked to the Availability Categorization (Low, Moderate, or High, per FIPS 199) but is not solely linked to a system's Availability Categorization. Availability for Contingency Planning purposes does not equate to meeting Service Level Agreement (SLA) requirements to ensure a specific level of system availability/up-time (e.g., 99.98, 99.73, etc.). SLA percentages of up-time do not directly translate into assured system redundancy, off-site data backup and storage, or the ability to recover an information system whose operation has been disrupted by a specific man-made or natural disaster. Availability, with regard to Contingency Planning, shall be centered around customer/functional user stated recovery time objectives (RTO) and recovery point objectives (RPO). Considering alternate site operations is part of the recovery strategy to ensure availability.

(2) Providing ITDR for any NGA or Contractor systems, and information contained therein, connected to an NGA network or operated by the Contractor, regardless of location, on behalf of NGA.

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(3) Adopting, and implementing, at minimum, the policies, procedures, controls, and standards of the NGA Continuity Program to ensure the availability of NGA information and information systems for which the Contractor is responsible under this contract, or to which the contractor may otherwise have access under this contract. The NGA Continuity Program is outlined in the NGA Instruction for Continuity Planning (NI 3020.2), which is available within the NGA Library, Internal Policies website.

(4) Ensure all NGA systems supported are properly developed, implemented, and categorized in accordance with the applicable Federal, DoD and NGA directives, standards, instructions etc. that are listed at Appendix B.

(5) Completed plans shall be entered into the NGA corporate repository known as the Continuity Planning Tool (CPT).

(d) Contractor Contingency Planning Deliverables. In accordance with the timeframes specified, the Contractor shall prepare and submit the following contingency planning related documents to the Contracting Officer/Contract Specialist (CO/CS), Contracting Officer Representative (COR), Program Manager (PM), or NGA Mission Assurance Division as appropriate/required.

(1) System Developers:

(i) IT Disaster Recovery (ITDR) Plan - due prior to system delivery. The ITDR Plan shall document precautions and measures to minimize the effects of an incident or disaster on NGA's related IT infrastructure, systems applications, and data resources. Plans should include specific, detailed, step-by-step procedures for recovering the information system(s) components, operating system, applications, data, and processes to implement in the event of a major hardware/software failure, communications or network outage, or facility unavailability. All ITDR Plans will be developed using the standard NGA ITDR Plan Template provided by the NGA Mission Assurance Division in the CPT. The plan will address all baseline Contingency Planning Controls as required for the system(s) as categorized per FIPS 199 outlined in:

(A) Committee on National Security Systems Instruction (CNSSI) 1253 'Security Categorization and Control Selection for National Security Systems'

(B) National Institute of Standards and Technology (NIST) 800-53 'Recommended Security Controls for Federal Information Systems and Organizations'

(C) National Institute of Standards and Technology (NIST) 800-34 'Contingency Planning Guide for Federal Information Systems'

(ii) IT Disaster Recovery (ITDR) Plan Operational Exercise - due prior to system and/or Application Service Provider (ASP) Initial Operational Capability (IOC). Prior to IOC, the contractor shall conduct an operational exercise of the information system(s) ITDR Plan to ensure its viability and executability. Exercise results and lessons learned shall be documented and any issues noted in executability documented in a Plan of Actions and Milestones (POA&M) and remediated prior to final system delivery as part of the Assessment and Authorization (A&A) process (formerly Certification and Accreditation (C&A) process).

(2) System Operators and Sustainers:

(i) IT Disaster Recovery (ITDR) Plan - due within 6 months of assuming responsibility for the operations and sustainment (O&S) or A&A of any NGA information system. The ITDR Plan shall document actionable precautions and executable measures to minimize the effects of an incident or disaster on NGA's related IT infrastructure, critical systems applications, and data resources. Plans should include specific, detailed, step-by-step procedures for recovering the information system(s) components, operating system, applications, data, and the processes to implement in the event of a major hardware/software failure, communications or network outage, or facility unavailability. All ITDR Plans will be developed using the standard NGA ITDR Plan Template and shall address all

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baseline Contingency Planning Controls as determined via the security controls at the entity registration meeting and as required for the system(s) as categorized per FIPS 199 outlined in:

(A) Committee on National Security Systems Instruction (CNSSI) 1253 'Security Categorization and Control Selection for National Security Systems'

(B) National Institute of Standards and Technology (NIST) 800-53 'Recommended Security Controls for Federal Information Systems and Organizations'

(C) National Institute of Standards and Technology (NIST) 800-34 'Contingency Planning Guide for Federal Information Systems'

(ii) If an ITDR Plan has already been created by the System Developer for the system, the O&S contractor will assume responsibility for the plan, familiarize themselves with its contents and ensure their ability to execute the existing plan, and staff, exercise, and update the plan per sections iii-v below.

(iii) IT Disaster Recovery Team - due within 6 months. Identify and put in place the appropriate number of personnel with the required skill sets to execute the system ITDR Plan and ensure recovery/reconstitution of the entity.

(iv) IT Disaster Recovery (ITDR) Operational/Functional Exercise - due annually. The contractor shall conduct an operational/functional exercise of the information system(s) ITDR Plan (at minimum annually) to ensure its viability and executability. Exercise results and lessons learned shall be documented and provided to the System Program Manager and any issues noted in plan executability shall be remediated.

(A) Conducting an operational exercise on any given day may not be feasible within the larger scope of NGA operations. However, an operational exercise will be conducted annually to ensure Agency ability to react to and execute the ITDR Plan under 'live' conditions. Planned site power outages may be used to accomplish this task.

(B) Annual ITDR Plan exercise records and results will be maintained to support tracking of Agency contingency planning performance measure/metrics and NGA's external reporting requirements to higher authority.

(v) IT Disaster Recovery Plan (ITDR) Maintenance - due annually or as required based on changes to system(s) architecture, configuration, processes, or primary points of contact.

(e) Training. All contractors supporting this contract will complete all mandatory Security, Information Assurance, and Business Continuity/Disaster Recovery training required by the Agency. These courses are offered through the NGA College at no cost to the contractor.

(f) Government Access for IT Inspection. The Contractor, upon request, shall afford the Government access to Contractor and subcontractor facilities, installations, operations, documentation, databases, and personnel used in performance of this contract to the extent required to carry out the NGA Continuity Program and audit the ability of the contractor to implement and execute proposed business continuity/disaster recovery plans to safeguard against threats and hazards to the integrity, confidentiality, and availability of NGA information systems and/or data.

(g) Government-Furnished Property (GFP)/Contractor-Acquired Property (CAP). All government funded property purchased by the Government, or the Contractor for the Government, used in execution of this contract, will be entered for accountability purposes into the NGA Total Asset Management (TAM) System.

(h) Subcontracts. The Contractor shall incorporate the substance of this clause in all subcontracts that require protection of NGA information and information systems as described in paragraph (a) of this clause, including those subcontracts that:

(1) Have physical or electronic access to NGA computer systems, networks, or IT infrastructure; or,

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(2) Use information systems to generate, store, process, or exchange data with NGA or on behalf of NGA, regardless of whether the data resides on a NGA or the Contractor's information system.

(i) Document Information. The Contractor shall contact the COR for any documents, information, or forms necessary to comply with the requirements of this clause.

(j) Contractor Responsibilities Upon physical completion of the contract, the Contractor shall return all NGA information and IT resources provided to the Contractor during contract performance and the Contractor shall certify that all NGA information has been purged from Contractor-owned systems used in contract performance.

(k) Failure to Comply. Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause shall be grounds for the Contracting Officer to terminate this contract.

APPENDICES to local clause 5X52.239-9002

Appendix A to 5X52.239-9002 - Definitions

Business Continuity Plans are documents that define resources, recovery responsibilities, and a predetermined set of instructions or procedures that describe how business processes will be restored after a significant disruption to business operations has occurred.

Continuity of Operations Plans provide for the continuation of an organization's essential functions at an alternate site and performing those functions for the duration of an event with little or no loss of continuity.

Continuity Planning Tool is the common repository for business continuity and disaster recovery plans and information within NGA. It is an automated, web-based planning tool accessible to all NGA government and contract staff. The tool is developed and maintained by NGA to support implementation of its overall Continuity Program.

Disaster Recovery Plans provide for the continuity of system operations after a disaster.

Exercise refers to the process of simulating an emergency to validate the viability of one or more aspects of a contingency plan to ensure that the plan is capable of supporting the continued execution of the agency's business functions throughout the duration of a continuity event.

Federal Information means, in accordance with OMB Circular A-130, Management of Federal Information Resources, Appendix 3 (Security of Federal Automated Information Resources), information created, collected, processed, disseminated, or disposed of by or for the Federal Government.

Federal Information System means an information system used or operated by an executive agency, by a contractor of an executive agency, or by another organization on behalf of an executive agency.

Information, in accordance with OMB Circular A-130, Management of Federal Information Resources, Appendix 3 (Security of Federal Automated Information Resources), means any communication or representation of knowledge such as facts, data, or opinions in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual forms.

Information Security means protecting information and information systems from unauthorized access, use, disclosure, disruption, modification or destruction in order to provide:

(a) Integrity, which means guarding against improper information modification or destruction, and includes ensuring information non-repudiation and authenticity;

(b) Confidentiality, which means preserving authorized restrictions on access and disclosure, including means of protecting personal privacy and proprietary information;

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(c) Availability, which means ensuring timely and reliable access to and use of information; and

(d) Privacy, which means regulating the appropriate collection, maintenance, use, and dissemination of personal information by federal executive branch agencies. It prohibits disclosure without consent.

Information System means a discrete set of information resources organized for the collection, processing, maintenance, transmission, and dissemination of information, in accordance with defined procedures, whether automated or manual.

Information Technology includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar processes, services (including support services) and related resources.

Mission Essential Function refers to the limited set of agency-level government functions that must be continued after a disruption of normal activities. NGA's single MEF is to 'Task, collect, process, exploit, analyze, and disseminate timely, relevant, and accurate geospatial-intelligence consisting of imagery, imagery-intelligence, and geospatial information for use by the Armed Forces, Departments or Agencies of the U.S., and foreign partners.'

Recovery Point Objective (RPO) is the point in time to which systems and data must be recovered after an outage (for example, end of previous day's processing). RPOs are often used as the basis for the development of backup strategies, and as a determinant of the amount of data that may need to be recreated after the systems or functions have been recovered.

Recovery Time Objective (RTO) is the period of time within which systems, applications, or functions must be recovered after an outage (for example, one business day). RTOs are often used as the basis for the development of recovery strategies and as a determinant as to whether or not to implement the recovery strategy during a disaster situation. RTO is derived from the point/time of service disruption.

Appendix B to 5X52.239-9002 - List of Applicable Standards, Directives, and Instructions

- Federal Information Security Management Act (FISMA)
- Department of Homeland Security - Federal Continuity Directive (FCD) 1 'Federal Executive Branch National Continuity Program and Requirements;'
- Intelligence Community Memorandum (ICM) 2007-100-1 'Intelligence Community Continuity Programs;'
- CNSSI 1253 'Security Categorization and Control Selection for National Security Systems;'
- DoD Directive 3020.26 'Defense Continuity Program;'
- DoD Instruction 3020.39 'Integrated Continuity Program for the Defense Intelligence Enterprise (DIE);'
- DoD Instruction 3020.42 'Defense Continuity Plan Development;'
- DoD Instruction 3020.45 'Defense Critical Infrastructure Program (DCIP) Management;'
- DoD Instruction 8500.2 'Information Assurance Implementation;'
- NIST SP800-34 'Contingency Planning Guide for Federal Information Systems;'
- NIST SP800-53 'Recommended Security Controls for Federal Information Systems and Organizations;'

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- All applicable NGA internal Policy Directives (PD), Policy Notices (PN), NGA Instructions (NI), and NGA CIO Directives (NCD).

(End of Clause)

I.134 OBSERVANCE OF LEGAL HOLIDAYS, DELAYED ARRIVAL OR EARLY RELEASE OF FEDERAL EMPLOYEES (SEP 2021)

(a) The National Geospatial-Intelligence Agency observes the following days as Federal holidays:

New Year's Day - January 1st

Martin Luther King's Birthday - 3rd Monday in January

Washington's Birthday - 3rd Monday in February

Memorial Day - Last Monday in May

Juneteenth Independence Day - June 19th

Independence Day - July 4th

Labor Day - 1st Monday in September

Columbus Day - 2nd Monday in October

Veterans Day - November 11th

Thanksgiving Day - 4th Thursday in November

Christmas Day - December 25th

Inauguration Day - January 20th of each fourth year after 1965

Washington DC - Metropolitan Area only

Any other day designated by Federal law, Executive Order, or Presidential Proclamation.

(b) Federal law (5 U.S.C. 6103) establishes the public holidays listed. Please note that most contractors work a Monday through Friday schedule. For these contractor employees, when a holiday falls on a non-workday -- Saturday or Sunday -- the holiday usually is observed on Monday (if the holiday falls on Sunday) or Friday (if the holiday falls on Saturday).

(c) Contractor personnel are not prohibited from performing work on a holiday, unless the labor category is not authorized to work as negotiated in the contract. The following list identifies the labor categories that are not authorized to perform work on a holiday based on negotiated terms. Labor categories included on this list are expected to complete their workday as scheduled when NGA government employees are authorized early release prior to a holiday (e.g. two hour early release) or other such benefit that applies to NGA government employees only.

LABOR CATEGORY

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(d) If the Contractor's personnel work on a holiday, no form of holiday, premium or differential compensation is an allowable cost under the Contract unless another clause in the Contract explicitly authorizes work on holidays and for the time period covered by the special compensation.

(e) When Federal employees working in an NGA facility are authorized a delayed arrival, released early or excused in bulk from work, the Contractor may authorize its personnel whose normal workplace is in that facility: (1) to continue working in the facility (unless prohibited by the NGA Facility Site Manager); (2) to work at alternate work locations; or (3) to refrain from performing services during that period of time; as long as any work performed does not result in the incurrence of any form of holiday, premium or differential compensation, or additional costs for alternate work locations to be reimbursed by the Government as a direct or non-nominal indirect cost. Such costs are not allowable under the Contract. Further, when services are not performed (e.g., a contractor employee takes leave) the non-working hours are not allowable as a direct charge under the Contract.

(End of clause)

I.135 GOVERNMENT SHUTDOWN, FURLOUGH OF GOVERNMENT PERSONNEL AND CLOSURE OF NGA FACILITIES (NOV 2018)

(a) An NGA facility may be closed down for all or a portion of a business day(s) as a result of:

- 1) Failure of Congress to appropriate funds, resulting in a government shutdown and furlough of government personnel;
- 2) Actual Continuity of Operations (COOP) or COOP training exercises;
- 3) Severe weather;
- 4) Unplanned events; or
- 5) Any other reason deemed appropriate by the D/NGA.

(b) In specific reference to (a) 1, and notwithstanding any other provision of the contract, contractors should continue to perform work in accordance with the terms of the contract, provided funding is available on the contract. Unless otherwise directed by the Contracting Officer, no work shall continue in the absence of available funding on the contract. A Contracting Officer will issue specific stop-work notices to those contractors who must stop work due to the government shutdown. Once a stop-work notice is received, contractors should implement an orderly shutdown (e.g., secure files, make preparations to preserve work, etc...). Unless otherwise directed by the Contracting Officer, the stop-work order will automatically lift when Congress appropriates funds and work performance should resume provided there is funding on the contract.

(c) In specific reference to (a)2 through (a)5, the Contractor's personnel may be authorized by the cognizant Contracting Officer or Contracting Officer's Representative (COR) to work during a Government shutdown or closure as described in this clause, as long as any work performed does not result in the incurrence of any form of holiday, premium or differential compensation or additional costs for alternate work locations to be reimbursed by the Government as a direct or non-nominal indirect cost. Unless otherwise explicitly authorized by another clause, such costs are not allowable under the Contract. Further, when services are not performed (e.g., a contractor employee takes leave) the non-working hours are not allowable as a direct charge under the Contract.

(End of clause)

I.136 MANAGEMENT OF NGA GOVERNMENT PROPERTY (MAR 2023)

Management of NGA Government Property

(a) Definitions

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(1) NGA Accountable Property System of Record (APSR) is the enterprise system for property accountability, stewardship, and financial reporting. Contains the official records that form the basis for accountability, audit, and fiduciary reporting of accountable property. Functions as a sub-ledger to the NGA accounting system for financial reporting purposes.

(b) Contractor Responsibilities.

(1) The Contractor shall account for all accountable Government Furnished Property (GFP) in NGA APSR in accordance with DoDI 5000.64.

(2) The Contractor shall designate an Asset Custodian (AC) to manage and account for no greater than 3,000 GFP assets per AC in the NGA APSR. UNCLASSIFIED 130 UNCLASSIFIED

(3) The Contractor shall physically inventory 100% of all accountable GFP in its possession on an annual basis based on NGA-SIOP Inventory Schedule and ensure reconciliation within the APSR.

(4) Contractors should submit their annual inventory report to SIOP, in turn for OCS to incorporate as the official GFP support record.

(5) Contractors with no access to COE/APSR shall report inventory results, asset deliveries/receipt, and asset disposal within 10 days of completion to the NGA Security and Installation Operations Office, Policy and Programs Division (SIOP) at NGA/SIOP, Mail Stop N82-SIOP, 7500 GEOINT Drive, Springfield, VA 22150 to update the NGA APSR.

(c) Government Responsibilities.

(1) The NGA Security and Installation Operations Directorate, Installation Operations Office, Policy and Programs Division (SIOP) shall perform the property administration function identified in FAR 42.302(a)(27).

(2) The Government shall provide instruction on the use of the NGA APSR.

(3) The Government shall designate a Program Asset Manager to perform receipt and acceptance on behalf of the Government for property managed in the NGA APSR.

(End of Clause)

I.137 GOVERNMENT-FURNISHED LIMITED DISTRIBUTION MATERIALS (JUN 2004)

(a) Definition - LIMITED DISTRIBUTION (LIMDIS) materials mean any unclassified geospatial information and data or imagery distributed by or created by the National Geospatial-Intelligence Agency, as well as materials derived from National Geospatial-Intelligence Agency information and data, that is marked or labeled as "LIMITED DISTRIBUTION" or "LIMDIS".

(b) Geospatial information and data or imagery identified as being "LIMITED DISTRIBUTION" are protected from public disclosure pursuant to Title 10, United States Code, Section 455. The Government may provide LIMITED DISTRIBUTION materials to the Contractor (or Subcontractor) for use in the performance of this contract.

(c) In addition to the restrictions and obligations contained in the clause at DFARS 252.245-7000, "Government-Furnished Mapping, Charting, and Geodesy Property (April 2012)," the Contractor (or Subcontractor) shall:

(1) Grant access to LIMDIS materials to only those individuals having a need for access in the performance of this contract. In furtherance of this requirement, the contractor shall:

a. Prohibit storage of LIMDIS materials on systems accessible by other individuals who do not require such access.

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- b. Ensure that LIMDIS materials are not used to either demonstrate products or capabilities outside the scope of the contract or as a marketing tool.
- c. Ensure that LIMDIS materials are not used to create other products or derivative products.
- d. Prohibit the processing or transmission of LIMDIS materials on unencrypted or unsecured systems accessible by the public such as the World Wide Web.
- e. Ensure that LIMDIS materials are not displayed or made otherwise accessible to the public.
- f. Ensure that LIMDIS materials are not released, accessed by, or sold to foreign governments or international organizations.
- g. Take whatever additional measures are necessary to prevent unauthorized access to LIMDIS materials.
- h. Employ storage and inventory controls adequate to ensure that LIMDIS materials are protected from loss or unauthorized use or access.

(2) Ensure each reproduction of LIMDIS materials includes the following LIMDIS caveat:

LIMITED DISTRIBUTION

Distribution authorized to DoD, IAW 10 U.S.C. § 130 & § 455. Release authorized to U.S. DoD contractors IAW 48 CFR § 252.245-7000. Refer other requests to Headquarters, NGA, ATTN: Release Officer, Mail Stop D-136. Destroy as "FOR OFFICIAL USE ONLY." Removal of this caveat is prohibited.

(3) Ensure LIMDIS materials that are no longer required for contract performance and chosen for destruction are destroyed by a method that prevents reconstruction of the materials to their original condition. Paper products should be destroyed by a method such as pulping, burning, or cross-cut shredding. Electronic media should be returned to the Contracting Officer or destroyed locally in a manner that prevents reconstruction of the media and abides by any environmental regulations.

(4) Immediately submit a report to the Contracting Officer upon discovery that LIMDIS material has been lost, stolen, or disclosed to unauthorized persons. Follow-up reports containing additional facts will be provided immediately when those facts become known. The Contractor (and/or Subcontractor) shall provide an assessment of the extent to which LIMDIS material has been compromised and shall propose corrective action to limit the extent of compromise and to prevent a reoccurrence.

(d) The Contractor shall include the terms and conditions of subparagraphs (a) through (c) of this provision in every subcontract.

(End of Clause)

I.138 CONTRACTOR COMPLIANCE WITH ALL APPLICABLE NATIONAL GEOSPATIAL-INTELLIGENCE AGENCY (NGA) AND U.S. GOVERNMENT INSTALLATION REGULATIONS, DIRECTIVES, INSTRUCTIONS, RULES, POLICIES AND PROCEDURES (MAR 2023)

A. The Contractor shall comply with, and shall ensure that its personnel, to include subcontractors, comply with all applicable NGA regulations, directives, instructions, rules, policies and procedures. The Contractor may request copies from the Contracting Officer's Representative (COR), the Contracting Officer or their designated representative(s).

B. The Contractor shall comply with, and shall ensure that its personnel, to include subcontractors, comply with regulations, directives, instructions, rules, policies, procedures and other applicable requirements issued by the U.S. Government Installation Commander where NGA is a tenant activity, including, but not limited to, those relating to

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force protection, security, health and safety. The Contractor may request copies from the Contracting Officer's Representative (COR), the Contracting Officer or their designated representative(s).

C. The Contractor shall institute and implement an effective program to ensure their employees and subcontractors, comply with all applicable requirements in accordance with paragraphs A and B above as well as paragraphs E and H below.

D. The specific requirements covered in paragraphs A, B, E, and H may be specified in the Performance Work Statement, elsewhere in the contract, or in NGA and/or Government installation regulations, directives, instructions, rules, policies and procedures. Specific requirements may include, but are not limited to categories such as:

- Security in/out processing
- Personnel in/out processing
- Facility access, parking, and in/out processing
- Information technology access and in/out processing
- PeopleSoft access, updates and in/out processing
- Periodic and special training requirements

E. Facility Access and Badging.

The following criteria must be met in order to be issued an NGA IC badge and to gain access to an NGA-controlled facility:

(1) NGA IC badges will only be issued to those contractors who provide direct-charge support on an active TS/SCI NGA contract, even when seated at corporate locations outside of NGA Government facilities. Green badges must be used at least once per week at an NGA Government facility. Failure to use an NGA IC badge may result in suspension or termination of the badge for lack of activity. The badges will expire at the end of the supported contract. Note: NGA IC badges will not be issued to any contractor who does not need access to an NGA facility, i.e., Corporate VIPs, etc. Infrequent visitors must report to the Visitor's Center.

(2) Notwithstanding the above, NGA badges will be issued to contractors, who are required by contract, to gain access to an NGA facility in the event of an emergency or when after-hours access is required. The Government POC or Contracting Officer's Representative (COR) coordinates the submission of an application for an NGA badge; establishment of a PeopleSoft record of SCI accesses; completion of NGA Form 5212-7A, "Request for Identification/Building Access Picture Badge"; and submission of the application to the appropriate Site Security Office for approval. (Reference NGA Instruction 5210.8, Physical Security Program)

F. The Contracting Officer may direct the Contractor, at its own expense, to remove and replace any Contractor personnel who fail to comply with or violate applicable requirements of this clause. Such action may be taken at the Government's discretion without prejudice to its rights under any other provision of this contract, including the Termination for Default clause.

G. The Contracting Officer may include the results of the Contractor's ability to adhere to this clause in past performance reports, quality assurance surveillance plans and award fee plans as part of the overall administration of this contract.

H. NGA Inspector General

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(1) The contractor must report to the NGA Inspector General (IG), DoDIG, or Intelligence Community IG any and all possible violations of federal law or illegal intelligence activities related to this contract by individuals charging directly or indirectly to this contract.

(2) The IG shall have access to any individual charging directly or indirectly to this contract whose testimony is needed for the performance of the IG's duties. In addition, the IG shall have direct access to all records, reports, audits, reviews, recommendations, documents, e-mails, papers, or other material that relate to this contract with respect to which the IG has responsibilities. Failure on the part of any contractor to cooperate with the IG shall be grounds for administrative action by the Director, Office of Contract Services, including contractual remedies.

(3) NGA contractors and contractor personnel may report suspected instances of improper conduct through the NGA IG Hotline. Contractors shall make their employees aware of this Hotline: 571-557-4849, secure 578-4849, or toll free 1-800-380-7729 or by contacting the OIG at IG@nga.mil or secure at IG@nga.ic.gov.

(4) The contractor agrees to include the substance of this clause in all subcontracts exceeding the simplified acquisition threshold except those for commercial products or commercial services and those where the NGA association must be protected.

(5) This requirement is supported in the Federal Acquisition Regulation (FAR) clause 52.203-13, which requires timely disclosure to the Government of credible evidence of violation of law, and timely and complete response to OIG requests for documents and access to employees and information.

(6) This requirement is supported in NGA policy. NGAI 7410.1 requires all personnel, to include contractors, to cooperate fully with NGA OIG audits, inspections, and investigations.

(End of Clause)

SECTION J - List of Documents, Exhibits and Other Attachments

J.1 List of Documents, Exhibits and Other Attachments

Attachment Number	Title	Document Version	Date	Number of Pages
J-01	J-01 FS3i Base PWS v9 01022026	BASE	01/05/2026	42
J-02	J-02 DD254 HM047625R0016 20250311	BASE	01/05/2026	9
J-03	J-03 FS3i Common Services-TO-PWS-v16 01022026	BASE	01/05/2026	62
J-04	J-04 FS3i Common Services Task Order QASP 01022026	BASE	01/05/2026	14
J-05	J-05 FS3i Air PWS v4.1 01022026	BASE	01/05/2026	15
J-06	J-06 FS3i Air Task Order QASP Placeholder	BASE	01/05/2026	1
J-07	J-07 FS3i CDRLs 1423 REV 3.2	BASE	01/05/2026	70
L-1	L-1 OCI Disclosure Form	BASE	01/05/2026	2
L-2	L-2 BOE Placeholder	BASE	01/05/2026	1
L-3	L-3 Key Personnel Resume Template	BASE	01/05/2026	4
L-4	L-4 Small Business Participation Template	BASE	01/05/2026	1
L-5	L-5 Master Project Template	BASE	01/05/2026	1
L-6	L-6 Past Performance Questionnaire	BASE	01/05/2026	6
L-7	L-7 Intellectual Property Schedule	BASE	01/05/2026	10
L-8	L-8 Facility Security Clearance Level Template	BASE	01/05/2026	1
L-9	L-9 Personnel Security Clearance Template	BASE	01/05/2026	1
L-10	L-10 Placeholder	BASE	01/05/2026	1
L	Section L v3 122825	BASE	01/05/2026	20
M	Section M v3 122825	BASE	01/05/2026	18

SECTION K - Representations, Certifications, and Other Statements of Bidders

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K.1 Representations, Certifications, and Other Statements of Bidders

K.2 52.201-1 ACQUISITION 360: VOLUNTARY SURVEY. (SEP 2023)

(a) All actual and potential offerors are encouraged to provide feedback on the preaward and debriefing processes, as applicable. Feedback may be provided to agencies up to 45 days after award. The feedback is anonymous, unless the participant self-identifies in the survey. Actual and potential offerors can participate in the survey by selecting the following link: <https://www.acquisition.gov/360>.

(b) The Contracting Officer will not review the information provided until after contract award and will not consider it in the award decision. The survey is voluntary and does not convey any protections, rights, or grounds for protest. It creates a way for actual and potential offerors to provide the Government constructive feedback about the preaward and debriefing processes, as applicable, used for a specific acquisition.

(End of provision)

K.3 52.203-11 CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS. (SEP 2024)

K.4 52.204-3 TAXPAYER IDENTIFICATION. (OCT 1998)

(a) *Definitions.*

Common parent, as used in this provision, means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

Taxpayer Identification Number (TIN), as used in this provision, means the number required by the Internal Revenue Service (IRS) to be used by the offeror in reporting income tax and other returns. The TIN may be either a Social Security Number or an Employer Identification Number.

(b) All offerors must submit the information required in paragraphs (d) through (f) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the IRS. If the resulting contract is subject to the payment reporting requirements described in Federal Acquisition Regulation (FAR) 4.904, the failure or refusal by the offeror to furnish the information may result in a 31 percent reduction of payments otherwise due under the contract.

(c) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(d) *Taxpayer Identification Number (TIN).*

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

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☐ Offeror is an agency or instrumentality of the Federal Government.

(e) *Type of organization.*

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4;

☐ Other _____.

(f) *Common parent.*

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision.

☐ Name and TIN of common parent:

Name _____

TIN _____

(End of provision)

K.5 52.204-5 WOMEN-OWNED BUSINESS (OTHER THAN SMALL BUSINESS). (OCT 2014)

(b) *Representation. (Complete only if the offeror is a women-owned business concern and has not represented itself as a small business concern in paragraph (c)(1) of FAR 52.219-1, Small Business Program Representations, of this solicitation.)* The offeror represents that it ☐ is a women-owned business concern.

K.6 52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS. (JAN 2025) - ALTERNATE I (MAR 2023)

NAICS code	Size standard
541511	\$34M
☐	☐
☐	☐

☐ (i) 52.204-17, Ownership or Control of Offeror.

☐ (ii) 52.204-20, Predecessor of Offeror.

☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

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☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Certification.

☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

☐ (vi) 52.227-6, Royalty Information.

☐ (A) Basic.

☐ (B) Alternate I.

☐ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

K.7 52.204-17 OWNERSHIP OR CONTROL OF OFFEROR. (AUG 2020)

(b) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (c) and if applicable, paragraph (d) of this provision for each participant in the joint venture.

Immediate owner CAGE code: ☐

Immediate owner legal name: ☐ (Do not use a "doing business as" name)]

Is the immediate owner owned or controlled by another entity?: ☐ Yes or ☐ No.

Highest-level owner CAGE code: ☐

Highest-level owner legal name: ☐ (Do not use a "doing business as" name)]

K.8 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT. (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

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(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) *Representations.* The Offeror represents that-

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.* (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

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(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

K.9 52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION. (OCT 2020)

K.10 52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION. (NOV 2015)

K.11 52.209-5 CERTIFICATION REGARDING RESPONSIBILITY MATTERS. (AUG 2020)

(a)(1) The Offeror certifies, to the best of its knowledge and belief, that-

(i) The Offeror and/or any of its Principals-

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or

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destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in subdivision (a)(1)(i)(B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) Examples. (i) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(ii) The Offeror has ☐ has not ☐, within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) *Principal*, for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

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(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

K.12 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS. (OCT 2018)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

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(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

K.13 52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW. (FEB 2016)

K.14 52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION. (NOV 2021)

[] (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

[](2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

K.15 52.222-38 COMPLIANCE WITH VETERANS' EMPLOYMENT REPORTING REQUIREMENTS. (FEB 2016)

K.16 52.225-20 PROHIBITION ON CONDUCTING RESTRICTED BUSINESS OPERATIONS IN SUDAN-- CERTIFICATION. (AUG 2009)

K.17 52.225-25 PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN CERTAIN ACTIVITIES OR TRANSACTIONS RELATING TO IRAN-REPRESENTATION AND CERTIFICATIONS. (JUN 2020)

K.18 52.230-1 COST ACCOUNTING STANDARDS NOTICES AND CERTIFICATION. (JUN 2020)

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Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, Part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

I. Disclosure Statement - Cost Accounting Practices and Certification

(a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.201-4(b) resulting from this solicitation will be subject to the requirements of the Cost Accounting Standards Board (48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.

(b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offeror's proposal under this solicitation unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of Part I of this provision.

CAUTION: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

☐ (1) *Certificate of Concurrent Submission of Disclosure Statement.* The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows: (i) original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable, and (ii) one copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained from the cognizant ACO or Federal official.)

Date of Disclosure Statement: ☐

Name and Address of Cognizant ACO or Federal Official Where Filed: ☐

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

☐ (2) *Certificate of Previously Submitted Disclosure Statement.* The offeror hereby certifies that the required Disclosure Statement was filed as follows:

Date of Disclosure Statement: ☐

Name and Address of Cognizant ACO or Federal Official Where Filed: ☐

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

☐ (3) *Certificate of Monetary Exemption.* The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and

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subcontracts subject to CAS totaling \$50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

☐ (4) *Certificate of Interim Exemption.* The offeror hereby certifies that (i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted and (ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under subparagraph (c)(1) or (c)(2) of Part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

CAUTION: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of \$50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

II. Cost Accounting Standards - Eligibility for Modified Contract Coverage

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

☐ The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than \$50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

CAUTION: An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of \$50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of \$50 million or more.

III. Additional Cost Accounting Standards Applicable to Existing Contracts

The offeror shall indicate below whether award of the contemplated contract would, in accordance with subparagraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

☐ Yes ☐ No

(End of provision)

K.19 52.230-7 PROPOSAL DISCLOSURE--COST ACCOUNTING PRACTICE CHANGES. (APR 2005)

K.20 252.203-7005 REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS. (SEP 2022)

K.21 252.204-7008 COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS. (OCT 2016)

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K.22 252.204-7016 COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION. (DEC 2019)

(c) *Representation.* The Offeror represents that it [] does, [] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

K.23 252.204-7017 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION. (MAY 2021)

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

K.24 252.209-7002 DISCLOSURE OF OWNERSHIP OR CONTROL BY A FOREIGN GOVERNMENT. (DEC 2022)

K.25 252.219-7000 ADVANCING SMALL BUSINESS GROWTH. (JUN 2023)

K.26 252.225-7003 REPORT OF INTENDED PERFORMANCE OUTSIDE THE UNITED STATES AND CANADA-SUBMISSION WITH OFFER. (JAN 2025)

K.27 252.225-7031 SECONDARY ARAB BOYCOTT OF ISRAEL. (JUN 2005)

K.28 252.225-7050 DISCLOSURE OF OWNERSHIP OR CONTROL BY THE GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM. (DEC 2022)

K.29 252.225-7055 REPRESENTATION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME. (MAY 2022)

K.30 252.225-7057 PREAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA. (AUG 2022)

K.31 252.225-7059 PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION-REPRESENTATION. (JUN 2023)

SECTION L - Instructions, Conditions, and Notices to Bidders

L.1 Instructions, Conditions, and Notices to Bidders

Page Size and Format: Page size shall be 8.5 by 11 inches, except for foldouts, which shall not exceed 11 by 17 inches. Margins shall be set at one inch on top and bottom and both sides. Minimum type size shall be 10 point Arial standard font with single spacing (not to exceed 56 lines per page).

See Attachment L Supplemental - Instructions, Conditions, and Notices to Bidders (L1.1 through L1.20)

L.2 52.204-7 SYSTEM FOR AWARD MANAGEMENT. (NOV 2024)

L.3 52.204-22 ALTERNATIVE LINE ITEM PROPOSAL. (JAN 2017)

L.4 52.207-1 NOTICE OF STANDARD COMPETITION. (MAY 2006)

L.5 52.215-1 INSTRUCTIONS TO OFFERORS - COMPETITIVE ACQUISITION. (NOV 2021)

L.6 52.215-16 FACILITIES CAPITAL COST OF MONEY. (JUN 2003)

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L.7 52.215-20 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN COST OR PRICING DATA. (NOV 2021)

L.8 52.215-22 LIMITATIONS ON PASS-THROUGH CHARGES--IDENTIFICATION OF SUBCONTRACT EFFORT. (OCT 2009)

L.9 52.216-1 TYPE OF CONTRACT. (APR 1984)

The Government contemplates award of a hybrid Firm Fixed Price, Cost Reimbursable Fixed Fee, Cost Reimbursable (no fee), and Time and Material contract resulting from this solicitation.

(End of provision)

L.10 52.216-29 TIME-AND-MATERIALS/LABOR-HOUR PROPOSAL REQUIREMENTS--OTHER THAN COMMERCIAL ACQUISITION WITH ADEQUATE PRICE COMPETITION. (NOV 2021)

L.11 52.222-56 CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN. (OCT 2020)

L.12 52.233-2 SERVICE OF PROTEST. (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Daniel Fadely, daniel.r.fadely@nga.mil.

L.13 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): acquisition.gov

(End of provision)

L.14 52.252-3 ALTERATIONS IN SOLICITATION. (APR 1984)

Portions of this solicitation are altered as follows: N/A

(End of provision)

L.15 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS. (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR chapter 1) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the provision.

(b) The use in this solicitation of any N/A (48 CFR chapter []) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of provision)

L.16 252.204-7019 NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS. (NOV 2023)

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L.17 252.215-7008 ONLY ONE OFFER. (DEC 2022)

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable **U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification.**

L.18 252.215-7009 PROPOSAL ADEQUACY CHECKLIST. (MAR 2023)

L.19 252.215-7010 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA. (MAY 2024)

L.20 252.215-7012 REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA. (JAN 2018)

The Offeror shall submit the cost portion of the proposal via the following electronic media: See Section L Instructions

L.21 252.215-7013 SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS. (JAN 2023)

L.22 252.215-7016 NOTIFICATION TO OFFERORS-POSTAWARD DEBRIEFINGS. (DEC 2022)

L.23 252.216-7002 ALTERNATE A, TIME-AND-MATERIALS/LABOR-HOUR PROPOSAL REQUIREMENTS-OTHER THAN COMMERCIAL ACQUISITION WITH ADEQUATE PRICE COMPETITION. (JAN 2023)

L.24 USE OF CONTRACTOR SUPPORT (OCT 2009)

(a) The Government will use American Systems Corp., Falcon Logic, ManTech, and Pardus Inc. for facility support only. The Government will use BVTI, NetServices, Northrop Grumman, and Probit Inc. for administrative, technical, and cost analysis support during source selection and during the term of any resulting contract. The exclusive responsibility for source selection will reside with the Government.

(b) Proprietary information submitted in response to this solicitation will be protected from unauthorized disclosure as required by Subsection 27 of the Office of Procurement Policy Act as amended (the Procurement Integrity Act)(41 U.S.C. 423) (hereinafter referred to as "the Act") as implemented in the FAR. All companies listed above is/are bound contractually by the Protection of Information and Nondisclosure Agreements clause with respect to proprietary information. By submitting a proposal in response to this solicitation, the Contractor consents to the Government disclosing Contractor proprietary information to the aforementioned contractors for the purposes indicated.

(End of Provision)

SECTION M - Evaluation Factors for Award

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